



The Shipbuilding Subsidy War: Japan vs. South Korea

【鹬蚌相争渔翁得利 | 韩国造船业逆袭日本，中国却悄无声息成最大赢家】

Summary: The decades-long conflict between Japan and South Korea over shipbuilding subsidies reveals a deeper battle between two models of capitalism. Japan, the established leader, accuses South Korea of unfair state-backed practices that distort the global market. South Korea defends its "national champion" strategy, arguing it's essential for economic development. The WTO has become the arena for this clash, but legal ambiguity and institutional paralysis have left the dispute unresolved. Meanwhile, China's rise has overshadowed both, capturing over half the global market.

摘要：日本与韩国围绕造船补贴的长期冲突，实则是两种资本主义模式的深层较量。作为行业老牌霸主，日本指控韩国通过政府扶持扭曲全球市场；韩国则坚称其"国家冠军"战略是经济发展的必要手段。这场争端在WTO法庭陷入拉锯，却因法律模糊性与机制瘫痪悬而未决。而中韩日三足鼎立之际，中国已悄然夺取全球过半市场份额，改写行业格局。



THE SHIPBUILDING SUBSIDY WAR



🕒 Estimated Reading Time: 40 min.

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🎵 Imagine a war for global industrial supremacy.

想象一场争夺全球工业霸权的战争。

🎵 But this war isn't fought with warships on the high seas.

但这场战争并非在公海上用战舰进行。

🎵 It's fought with thousands of pages of legal arguments, dense economic data, and meticulous expert testimony.

它通过数千页的法律论据、密集的经济数据和细致的专家证词展开。

▶ The battlefields are not oceans, but the quiet, sterile hearing rooms of the World Trade Organization in Geneva.

战场不是海洋，而是日内瓦世界贸易组织安静而刻板的听证室。

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▶ This is the story of the shipbuilding subsidy war, a decades-long industrial conflict waged between two of Asia's titans: Japan, the established master, and South Korea, the relentless challenger.

这是造船补贴战争的故事，一场长达数十年的工业冲突，发生在亚洲两大巨头之间：日本，这个已确立的霸主，和韩国，这个不懈的挑战者。

▶ For over twenty years, these two nations have been locked in a bitter struggle, accusing each other of unfair practices that distort the multi-billion-dollar global market for building the massive vessels that carry the world's trade.

二十多年来，这两个国家陷入了一场激烈的斗争，互相指责对方的不公平做法扭曲了价值数十亿美元的全球市场，这个市场建造着承载世界贸易的巨型船舶。

▶ At the heart of this conflict lies a fundamental question: How did South Korea, a nation ravaged by war just decades earlier, build a shipbuilding empire that managed to eclipse its former colonial ruler and the world's undisputed leader, Japan?

这场冲突的核心是一个根本问题：韩国，一个几十年前还被战争摧残的国家，是如何建立起一个造船帝国，并成功超越其前殖民统治者和世界无可争议的领导者日本的？

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▶ And more pointedly, why has Japan spent decades and untold millions of dollars trying to dismantle that empire, not in the shipyard, but in the courtroom?

更尖锐的问题是，为什么日本花费数十年时间和无数百万美元，试图在法庭上而非造船厂拆解这个帝国？

▶ The answer reveals more than just a commercial rivalry.

答案揭示的不仅仅是一场商业竞争。

▶ The dispute is a proxy battle over two fundamentally different models of capitalism.

这场争端是两种根本不同的资本主义模式之间的代理战。

▶ Japan's case represents the market-oriented, rules-based trade perspective, where a level playing field is paramount.

日本的立场代表了以市场为导向、基于规则的贸易视角，其中公平竞争环境至关重要。

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▶ South Korea's defense is rooted in a state-directed, "national champion" model of development, where the government actively steers capital and resources to achieve strategic national objectives.

韩国的辩护植根于国家主导的“国家冠军”发展模式，政府积极引导资本和资源以实现国家战略目标。

▶ The WTO became the arena where these two powerful, and conflicting, economic philosophies would collide.

世贸组织成为这两种强大而冲突的经济哲学碰撞的舞台。

▶ This is the story of that collision.

这就是这场碰撞的故事。

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▶ The modern industrial competition between Japan and South Korea does not exist in a vacuum.

日本和韩国之间的现代工业竞争并非存在于真空中。

▶ It is layered upon centuries of complex and often fraught history, a dynamic of cultural exchange, political confrontation, and military conflict that stretches back millennia.

它建立在几个世纪复杂且常常充满冲突的历史之上，这种历史动态包括文化交流、政治对抗和军事冲突，可以追溯到几千年前。

▶ From the Imjin War of the late 16th century to the Japanese colonization of the Korean peninsula from 1910 to 1945, the relationship has been haunted by deep-seated national

pride and historical grievances.

从16世纪末的壬辰倭乱到1910年至1945年日本对朝鲜半岛的殖民统治，两国关系一直受到根深蒂固的民族自豪感和历史恩怨的困扰。

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▶ These historical tensions profoundly impact modern relations and fuel the intensity of their economic rivalries.

这些历史紧张关系深刻影响了现代关系，并加剧了它们经济竞争的激烈程度。

▶ After World War II and the Korean War, a new dynamic emerged.

第二次世界大战和朝鲜战争后，一种新的动态出现了。

▶ The United States, in its global ideological competition against communism, pushed for Japan, its former adversary, to participate in South Korea's economic development.

美国在其全球意识形态对抗共产主义的竞争中，推动其前对手日本参与韩国的经济发展。

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▶ This policy, formalized by the 1965 Normalization Treaty, was designed to build a strong anti-communist bloc in East Asia.

这一政策通过1965年的《韩日基本条约》正式确立，旨在在东亚建立一个强大的反共集团。

▶ It set the stage for a complex post-war relationship defined by both necessary cooperation and fierce competition, a relationship where economic interdependence was intertwined with an enduring rivalry.

它为战后复杂的关系奠定了基础，这种关系既有必要的合作，也有激烈的竞争，经济相互依存与持久竞争交织在一起。

▶ In the decades following World War II, Japan's shipbuilding industry rose from the ashes to become an unstoppable global force.

第二次世界大战后的几十年里，日本的造船业从废墟中崛起，成为一股不可阻挡的全球力量。

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▶ With new equipment, imported technology, and the organizational might of its great industrial conglomerates, the zaibatsu, Japan quickly recovered its wartime production levels.

凭借新设备、进口技术及其大型工业集团“财阀”的组织力量，日本迅速恢复了战时的生产水平。

▶ By 1957, it had surpassed its wartime peak, and from the 1960s through the 1980s, it was the undisputed king of the industry, producing roughly half of all new ship tonnage in the world.

到1957年，它已经超过了战时的峰值，从20世纪60年代到80年代，它是该行业无可争议的王者，生产了全球约一半的新船吨位。

▶ But as Japan cemented its dominance, a new challenger was emerging across the sea.

但随着日本巩固其主导地位，一个新的挑战者正在海对面崛起。

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▶ In the 1970s, South Korean President Park Chung Hee launched his ambitious Heavy-Chemical Industry (HCI) drive, a state-led plan to transform the nation's economy.

20世纪70年代，韩国总统朴正熙启动了雄心勃勃的重化工业（HCI）计划，这是一项由国家主导的改造国家经济的计划。

▶ Shipbuilding was explicitly targeted as a strategic industry, essential for the country's export-oriented growth.

造船业被明确列为战略产业，对该国出口导向型增长至关重要。

▶ The government poured massive investment into the sector, selecting powerful family-run conglomerates, the chaebol, to be its chosen instruments.

政府向该行业投入了大量资金，并选择强大的家族经营集团“财阀”作为其工具。

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▶ Hyundai, a construction firm with no shipbuilding experience, was famously tapped by Park to create a world-class shipyard, a testament to the government's direct and decisive role.

现代集团，一家没有造船经验的建筑公司，被朴正熙选中创建世界级造船厂，这证明了政府的直接和决定性作用。

▶ Throughout the 1980s and 1990s, South Korea's industry grew at a breathtaking pace, leveraging lower labor costs and an aggressive, state-backed expansion strategy.

在整个20世纪80年代和90年代，韩国的工业以惊人的速度增长，利用了较低的劳动力成本和激进的、国家支持的扩张战略。

▶ The seismic shift occurred at the turn of the millennium.

这一重大转变发生在千禧年之交。

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▶ Around the year 2000, South Korea officially surpassed Japan in global market share, ending Japan's decades-long reign.

大约在2000年，韩国在全球市场份额上正式超过日本，结束了日本长达数十年的统治。

▶ It was a moment of immense national pride for Korea and a stunning blow to Japan's industrial prestige.

这对韩国来说是民族自豪感的巨大时刻，对日本的工业声望是一个惊人的打击。

▶ This intense bilateral rivalry, however, had an unintended consequence.

然而，这种激烈的双边竞争产生了一个意想不到的后果。

▶ While Japan and Korea were locked in their struggle, a third, far larger competitor was quietly building its capacity.

当日本和韩国陷入争斗时，第三个、规模大得多的竞争对手正在悄悄建设其能力。

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▶ China's rise in shipbuilding has been nothing short of extraordinary.

中国在造船业的崛起堪称非凡。

▶ From a mere 5% of the global market in 2000, its share surged to over 53% by 2024.

从2000年仅占全球市场的5%，到2024年其份额飙升至53%以上。

▶ Over that same period, the combined market share of Japan and South Korea plummeted from 74% to just 42%.

在同一时期，日本和韩国的合计市场份额从74%骤降至仅42%。

▶ The decades-long fight between the two established giants created a strategic vacuum.

这两个老牌巨头之间长达数十年的斗争造成了战略真空。

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▶ Their focus on each other, manifested in bitter price wars and later, protracted legal battles, may have blinded them to the larger competitive threat looming on the horizon.

它们对彼此的专注，表现为激烈的价格战和后来的长期法律斗争，可能使它们忽视了地平线上更大的竞争威胁。

▶ While they poured resources into their bilateral conflict, China executed a massive state-backed industrial strategy, with government support estimated at around \$91 billion, that completely redrew the global map.

当它们将资源投入双边冲突时，中国执行了一项大规模的国家支持的工业战略，政府支持估计约为910亿美元，彻底改写了全球格局。

▶ The war between Korea and Japan, in the end, may have been a Pyrrhic conflict, weakening both and allowing a new hegemon to take the crown.

韩国和日本之间的战争，最终可能是一场得不偿失的冲突，削弱了双方，并让一个新的霸主夺得了王冠。

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▶ To understand South Korea's meteoric rise in shipbuilding, one must first understand the unique engine that powered it: the chaebol.

要理解韩国在造船业的迅速崛起，首先必须理解推动它的独特引擎：财阀。

▶ Literally meaning "rich family" or "financial clique," a chaebol is a massive, family-controlled industrial conglomerate, typically consisting of multiple, highly diversified companies.

字面意思是“富裕家族”或“金融集团”，财阀是一个庞大的、家族控制的工业集团，通常由多个高度多元化的公司组成。

▶ These groups—names like Hyundai, Samsung, and the former Daewoo—became synonymous with Korea's economic miracle, growing from humble beginnings after the Korean War into global behemoths.

这些集团——如现代、三星和前大宇——成为韩国经济奇迹的代名词，从朝鲜战争后的卑微起点成长为全球巨头。

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▶ The chaebol system was born out of the "guided capitalism" of the Park Chung Hee regime in the 1960s and 70s.

财阀制度诞生于20世纪60年代和70年代朴正熙政权的“指导资本主义”。

▶ The government, desperate to industrialize, forged a powerful, often collusive, alliance with these firms.

急于实现工业化的政府与这些公司建立了强大的、往往是共谋的联盟。

▶ It provided them with special favors, protection from competition, and, most importantly, access to capital in exchange for their cooperation in achieving the state's strategic objectives.

它为他们提供特殊优惠、保护免受竞争，最重要的是，提供资本获取途径，以换取他们在实现国家战略目标方面的合作。

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▶ This model was inspired by the pre-war Japanese zaibatsu, but with a critical, deliberate difference.

这一模式受到战前日本财阀的启发，但有一个关键的、刻意的区别。

▶ The Park regime nationalized South Korea's banks and, crucially, prohibited the chaebol from owning their own financial institutions.

朴正熙政权将韩国的银行国有化，并关键性地禁止财阀拥有自己的金融机构。

⏮ Unlike the Japanese zaibatsu, which were typically organized around a central bank that gave them financial independence, the Korean chaebol were made permanently dependent on the state for the vast sums of capital needed for industrial expansion.

与日本财阀通常围绕一家中央银行组织以获得财务独立性不同，韩国财阀被永久性地依赖于国家提供工业扩张所需的大量资本。

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⏮ This structural choice was a masterstroke of the Korean developmental state.

这一结构性选择是韩国发展型国家的神来之笔。

⏮ It created a powerful lever of control, ensuring that private enterprise would always be aligned with, and ultimately subservient to, national strategic goals.

它创造了一个强大的控制杠杆，确保私营企业始终与国家战略目标保持一致，并最终服从于国家战略目标。

⏮ This dependency is the structural foundation of the entire WTO dispute that would erupt decades later.

这种依赖性是几十年后爆发的整个世贸组织争端的结构性基础。

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⏮ The primary instrument for this state-directed capitalism was the Korea Development Bank, or KDB.

这种国家主导的资本主义的主要工具是韩国产业银行（KDB）。

⏮ Established by law in 1954, the KDB's explicit mandate was to supply and manage major industrial capital to develop Korean industries and the national economy.

根据1954年的法律成立，韩国产业银行的明确任务是提供和管理主要工业资本，以发展韩国工业和国民经济。

⏮ It was not a commercial bank in the Western sense; it was a policy bank, an extension of the government's economic planning ministry.

它不是西方意义上的商业银行；它是一个政策银行，是政府经济规划部门的延伸。

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▶ The KDB's role was pivotal.

韩国产业银行的作用至关重要。

▶ It channeled state-sponsored cheap loans to favored industries, guaranteed the foreign loans needed to import technology, and took the lead in corporate restructuring for firms deemed vital to the national interest.

它将国家资助的廉价贷款引导到受青睐的行业，为进口技术所需的外国贷款提供担保，并牵头对那些被认为对国家利益至关重要的公司进行重组。

▶ When the government decided that Korea must become a shipbuilding power, it was the KDB that provided the financial muscle to make it happen, funding the creation of massive shipyards for chaebol that had never built a ship before.

当政府决定韩国必须成为造船强国时，正是韩国产业银行提供了资金支持，为从未建造过船只的财阀资助建造大型造船厂。

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▶ This system of state-directed finance fostered incredible growth, but it also created enormous risks.

这种国家主导的金融体系促进了惊人的增长，但也带来了巨大的风险。

▶ The chaebol grew not always because they were profitable, but simply because they had access to vast, government-guaranteed loans.

财阀的成长并不总是因为它们盈利，而仅仅是因为它们获得了大量政府担保的贷款。

▶ They expanded relentlessly into dozens of industries, often with dangerously high levels of debt.

它们无情地扩张到数十个行业，往往伴随着危险的高负债水平。

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▶ By 1999, a quarter of all manufacturers in South Korea were not earning enough to even meet the interest payments on their debts.

到1999年，韩国四分之一的制造商甚至无法赚到足够的钱来支付债务利息。

▶ This created a "too big to fail" doctrine.

这催生了一种“大而不能倒”的信条。

▶ The shipbuilding giants, in particular, became so large and so integral to Korea's exports and employment that their failure was seen as a direct threat to the nation's economic stability.

尤其是造船巨头，变得如此庞大，对韩国的出口和就业如此重要，以至于它们的失败被视为对国家经济稳定的直接威胁。

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▶ This perception justified massive state-led interventions and bailouts whenever the cyclical shipbuilding industry entered a downturn.

这种观念为每当周期性造船业陷入低迷时的大规模国家主导干预和救助提供了理由。

▶ This practice of rescuing national champions, born from the very structure of the Korean model, is precisely what Japan would later challenge at the WTO as an unfair and illegal subsidy.

这种拯救国家冠军的做法，源于韩国模式的结构，正是日本后来在世贸组织挑战其为不公平和非法的补贴。

▶ The system that built an empire also contained the seeds of an international legal war.

建立帝国的体系也埋下了国际法律战争的种子。

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▶ No company better exemplifies the strengths and weaknesses of the Korean model than Daewoo Shipbuilding & Marine Engineering, or DSME.

没有哪家公司比大宇造船海洋工程公司（DSME）更能体现韩国模式的优点和弱点。

▶ The story of its struggles is ground zero for the WTO dispute.

它的挣扎故事是世贸组织争端的原点。

▶ The saga began with the spectacular collapse of its parent, the Daewoo Group, in 1999.

这一传奇始于1999年其母公司大宇集团的惊人倒闭。

▶ It was one of the largest corporate bankruptcies in world history at the time, with staggering debts of around \$50 billion.

这是当时世界历史上最大的企业破产之一，债务高达约500亿美元。

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▶ DSME was spun off as an independent company in 2000, but it remained chronically troubled, lurching from one crisis to the next.

DSME在2000年被分拆为一家独立公司，但它长期陷入困境，从一个危机跌跌撞撞地走向另一个危机。

▶ The situation reached a critical point in 2016, when a massive accounting fraud scandal was uncovered.

2016年，情况达到了临界点，当时发现了一起大规模的会计欺诈丑闻。

▶ The South Korean Board of Audit and Inspection found that the company had hidden ₩1.5 trillion (approximately \$1.35 billion) in losses on its books.

韩国审计监察院发现，该公司在其账目中隐藏了1.5万亿韩元（约合13.5亿美元）的亏损。

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▶ The revelation sent shockwaves through the industry, leading to a suspension of DSME's shares and pushing the already struggling shipyard to the brink of collapse.

这一消息震惊了整个行业，导致DSME股票停牌，并将已经陷入困境的造船厂推到了崩溃的边缘。

▶ With DSME facing insolvency, the Korean state, through its financial arms, stepped in.

随着DSME面临破产，韩国政府通过其金融机构介入。

▶ This was not the first time, nor would it be the last.

这不是第一次，也不会是最后一次。

▶ The interventions became a repeating cycle, providing the very ammunition Japan would use in its WTO complaints.

干预成为一种重复的循环，为日本在世贸组织的投诉提供了弹药。

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▶ The first major rescue came in 2015.

第一次重大救助发生在2015年。

▶ As a global downturn in shipping hammered the industry, DSME, already fragile, began to buckle.

随着全球航运业的低迷打击了该行业，已经脆弱的DSME开始崩溃。

▶ The Korea Development Bank (KDB) and the Export-Import Bank of Korea (KEXIM) orchestrated a massive bailout, injecting ₩4.2 trillion (about \$3.7 billion) in loans and equity to keep the company afloat.

韩国产业银行（KDB）和韩国进出口银行（KEXIM）策划了一项大规模救助计划，注入了4.2万亿韩元（约合37亿美元）的贷款和股权，以维持公司的运营。

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▶ But the relief was temporary.

但缓解是暂时的。

▶ Just 17 months later, in March 2017, DSME was again on the verge of defaulting on its debts.

仅仅17个月后，2017年3月，DSME再次濒临债务违约。

▶ The government and the state banks were forced to act again, orchestrating an even more complex rescue package.

政府和国有银行被迫再次采取行动，策划了一项更为复杂的救助方案。

▶ This included ₩2.9 trillion (\$2.6 billion) in fresh loans and a sweeping debt restructuring.

这包括2.9万亿韩元（26亿美元）的新贷款和全面的债务重组。

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▶ A significant portion of DSME's debt was converted into equity through a debt-for-equity swap, a move that dramatically increased the KDB's ownership stake and made the state-run bank the shipyard's majority shareholder.

大宇造船海洋工程公司（DSME）的大部分债务通过债转股转换为股权，此举大幅提高了韩国产业银行（KDB）的持股比例，并使这家国有银行成为该造船厂的最大股东。

▶ This intervention was drastic, designed to slash DSME's astronomical debt ratio, which had ballooned to an unsustainable 2,732%.

这一干预措施非常激进，旨在削减大宇造船海洋工程公司高达2732%的不可持续债务比率。

▶ Even after these massive interventions, DSME's troubles were not over.

即使在这些大规模干预之后，大宇造船海洋工程公司的困境仍未结束。

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▶ In 2019, a proposed merger with its rival, Hyundai Heavy Industries (HHI), which was seen as a final solution to stabilize the company, was blocked by European Union competition regulators.

2019年，与竞争对手现代重工业（HHI）的拟议合并被视为稳定公司的最终解决方案，但被欧盟竞争监管机构阻止。

▶ This left the KDB, after more than two decades as the shipyard's main creditor and shareholder, still holding the bag.

这使得韩国产业银行在作为该造船厂的主要债权人和股东二十多年后，仍然承担着责任。

▶ Finally, in late 2022, a buyer was found.

最终，在2022年底找到了买家。

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▶ The Hanwha Group, a major defense and chemicals chaebol, agreed to acquire a controlling stake in DSME for ₩2 trillion (\$1.5 billion), a deal again supported by the KDB.

韩华集团，一家大型国防和化工财阀，同意以2万亿韩元（15亿美元）收购大宇造船海洋工程公司的控股权，这笔交易再次得到了韩国产业银行的支持。

▶ This long, painful history of collapses and rescues forms the central pillar of the entire WTO dispute.

这段漫长而痛苦的崩溃与救助历史构成了整个WTO争端的核心支柱。

▶ Each bailout, each loan, each debt-for-equity swap was meticulously documented by Japan and presented as evidence of an unfair, state-sponsored advantage.

每一次救助、每一笔贷款、每一次债转股都被日本详细记录，并作为不公平的国家支持优势的证据提交。

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▶ The decision to repeatedly rescue DSME was about more than just one company.

多次救助大宇造船海洋工程公司的决定不仅仅关乎一家公司。

▶ It was a defense of the entire Korean export-led development model.

这是对韩国整个出口导向型发展模式的捍卫。

▶ The "too big to fail" shipbuilders were national champions, symbols of Korea's industrial prowess.

这些“大到不能倒”的造船企业是国家的冠军企业，象征着韩国的工业实力。

▶ Allowing one of the "Big Three" to go under would have been a tacit admission that the state-directed strategy had a fundamental, fatal flaw.

允许“三大”之一倒闭将意味着默认国家主导的战略存在根本性的致命缺陷。

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▶ For policymakers in Seoul, the immense financial cost of the bailouts was deemed less severe than the political and ideological cost of letting the model itself collapse.

对首尔的政策制定者来说，救助的巨大财务成本被认为比让这一模式本身崩溃的政治和意识形态成本更轻。

▶ It was a strategic imperative to save the company, regardless of the price or the looming threat of a legal war in Geneva.

拯救公司是一项战略要务，无论代价如何，也不管日内瓦即将爆发的法律战威胁。

▶ After years of raising concerns in bilateral talks and at multilateral forums like the Organisation for Economic Co-operation and Development (OECD), Japan decided the time for talk was over.

经过多年在双边会谈和经济合作与发展组织（OECD）等多边论坛上提出关切，日本决定谈判的时间已经结束。

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▶ In November 2018, Tokyo laid down the legal gauntlet, formally requesting dispute consultations with South Korea at the World Trade Organization.

2018年11月，东京正式向世界贸易组织提出与韩国的争端磋商请求，拉开了法律战的序幕。

▶ This case, officially designated Dispute DS571, marked the beginning of a new, highly confrontational phase in the shipbuilding rivalry.

此案正式编号为DS571争端，标志着造船业竞争进入了一个新的、高度对抗的阶段。

▶ The initial consultations failed to resolve the issue.

最初的磋商未能解决问题。

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▶ Just over a year later, in January 2020, Japan escalated the conflict, filing a second, even broader complaint known as Dispute DS594.

仅仅一年多后，2020年1月，日本升级了冲突，提交了第二份更广泛的投诉，即DS594争端。

▶ This wasn't just a follow-up; it was a comprehensive assault on what Japan viewed as a systemic and illegal government intervention in the market.

这不仅仅是一次后续行动，而是日本对韩国系统性非法政府干预市场的全面抨击。

▶ The European Union, which had fought its own battle with Korea over shipbuilding in the early 2000s, quickly signaled its support for Japan's position, joining the consultations as a third party and underscoring the international dimension of the dispute.

欧盟曾在2000年代初与韩国就造船业展开过斗争，迅速表示支持日本的立场，作为第三方加入磋商，突显了争端的国际性。

🎵 Japan's legal case was built on the foundation of the WTO's Agreement on Subsidies and Countervailing Measures (SCM Agreement) and the General Agreement on Tariffs and Trade (GATT) 1994.

日本的法律诉讼基于WTO的《补贴与反补贴措施协定》（SCM协定）和1994年《关税与贸易总协定》（GATT）。

🎵 Tokyo's central claim was that the array of financial support measures provided to struggling Korean shipyards, most notably DSME, were not legitimate commercial transactions.

东京的核心主张是，向陷入困境的韩国造船厂（尤其是大宇造船海洋工程公司）提供的一系列财政支持措施并非合法的商业交易。

🎵 Instead, they were illegal subsidies that distorted the global market and caused serious injury to Japanese shipbuilders.

相反，这些是非法补贴，扭曲了全球市场并对日本造船企业造成了严重损害。

🎵 In its detailed submissions to the WTO, Japan identified a long list of challenged measures.

在向WTO提交的详细文件中，日本列出了一长串受质疑的措施。

🎵 These included: Corporate Restructuring Measures: The multi-billion-dollar bailouts for DSME, STX Offshore & Shipbuilding, and others, led by state-owned entities.

其中包括：企业重组措施：由国有实体主导的对大宇造船海洋工程公司、STX海洋造船等企业的数十亿美元救助。

🎵 Non-Commercial Financing: Providing loans at below-market interest rates, equity infusions on terms no private investor would accept, and debt-for-equity swaps that unfairly favored the company.

非商业融资：提供低于市场利率的贷款、私人投资者不会接受的股权注入条款，以及不公平地偏向公司的债转股。

▶ Guarantees and Insurance: Offering loan guarantees and other forms of insurance for new ship orders on non-commercial terms, reducing risk for both the shipyards and their customers.

担保与保险：以非商业条款为新船订单提供贷款担保和其他形式的保险，降低造船厂及其客户的风险。

▶ Dedicated Support Programs: The creation of new state-backed entities like the Korea Ocean Business Corporation (KOBC), which was established with a multi-billion-dollar budget to finance the purchase of new Korean-built ships.

专项支持计划：创建新的国家支持实体，如韩国海洋商业公司（KOBC），该公司以数十亿美元的预算成立，用于为购买韩国新造船舶提供资金。

▶ Japan argued these measures constituted both "producer support"—direct financing that kept otherwise insolvent companies alive—and "sales support," which enabled them to offer artificially low prices to win international contracts.

日本认为，这些措施既包括“生产者支持”（即维持本应破产的公司的直接融资），也包括“销售支持”，使它们能够以人为压低的价格赢得国际合同。

▶ The result, Japan claimed, was suppressed global ship prices and a significant loss of market share for its own industry.

日本声称，结果是全球船舶价格被压低，其自身行业市场份额大幅下降。

▶ This is where the case becomes legally complex and where Japan faced its greatest challenge.

这是案件在法律上变得复杂的地方，也是日本面临最大挑战的地方。

▶ To win its case, it wasn't enough to show that Korea had provided financial support.

要赢得此案，仅证明韩国提供了财政支持是不够的。

▶ Under Article 3.1(a) of the SCM Agreement, the most powerful type of claim is against a "prohibited subsidy," which is a subsidy that is, in law or in fact, "contingent upon export performance".

根据《补贴与反补贴措施协定》第3.1(a)条，最有力的指控是针对“禁止性补贴”，即法律上或事实上“以出口表现为条件”的补贴。

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▶ De jure (in law) contingency: This would mean a law or regulation explicitly states that a company will only receive the subsidy if it exports its products.

法律上的（de jure）条件性：这意味着法律或法规明确规定，公司只有在出口产品时才能获得补贴。

▶ This is rare and was not the case here.

这种情况很少见，本案中并不存在。

▶ De facto (in fact) contingency: This is much harder to prove.

事实上的（de facto）条件性：这更难证明。

▶ It means that while not written in law, the facts demonstrate that the subsidy is implicitly tied to exporting.

这意味着，虽然没有写入法律，但事实表明补贴与出口隐含相关。

 00:19:06

▶ The granting of the subsidy is conditional on anticipated export performance.

补贴的发放以预期的出口表现为条件。

▶ Japan's entire case hinged on this de facto argument.

日本的整个案件都依赖于这一事实上的论点。

▶ It had to convince the WTO panel that the only reason the Korean government would pour billions of dollars into a failing shipyard like DSME was with the clear anticipation and expectation that the company would use those funds to win export orders on the global market.

它必须说服WTO专家组，韩国政府向大宇造船海洋工程公司这样的破产造船厂注入数十亿美元的唯一原因是明确预期并期望该公司利用这些资金在全球市场上赢得出口订单。

 00:19:33

▶ The argument was that the bailouts were effectively a blank check to underbid competitors, making the financial support implicitly conditional on future exports.

其论点是，救助实际上是一张空白支票，用于低价竞标竞争对手，使得财政支持隐含地以未来出口为条件。

▶ This is an incredibly high legal bar to clear, requiring the panel to infer intent from a complex web of financial transactions and government actions.

这是一个极高的法律门槛，要求专家组从复杂的金融交易和政府行动网络中推断意图。

▶ Ultimately, Japan's WTO strategy was a high-stakes legal gambit.

最终，日本的WTO战略是一场高风险的法律博弈。

 00:19:59

▶ It was an attempt to use the mechanisms of international trade law to force a fundamental change in a rival nation's domestic industrial policy.

这是试图利用国际贸易法的机制迫使竞争对手的国内产业政策发生根本性改变。

▶ The goal was less about recovering damages for a few lost ship orders and more about establishing a landmark WTO precedent: that the entire state-led, chaebol-rescuing, "too big to fail" model that had powered Korea's industrial rise was, in fact, illegal under the rules of global trade.

其目标与其说是为少数丢失的船舶订单挽回损失，不如说是建立一个具有里程碑意义的WTO先例：即推动韩国工业崛起的整个国家主导、财阀救助、“大到不能倒”的模式实际上违反了全球贸易规则。

▶ It was an ambitious, systemic challenge aimed at the very DNA of the Korean economic miracle.

这是一项雄心勃勃的系统性挑战，直指韩国经济奇迹的核心。

 00:20:36

▶ Faced with Japan's comprehensive legal assault, South Korea's response was swift and defiant.

面对日本的全面法律攻击，韩国的回应迅速而强硬。

🎧 From the outset, Seoul maintained that Japan's claims were entirely "groundless".

从一开始，首尔就坚称日本的指控完全“毫无根据”。

🎧 In official statements and submissions to the WTO, the Korean government argued that all financial measures taken were fully compliant with international norms and WTO regulations.

在向WTO提交的官方声明和文件中，韩国政府辩称，所采取的所有财政措施完全符合国际规范和WTO规则。

 00:21:03

🎧 The cornerstone of Korea's defense was a crucial semantic and legal distinction.

韩国辩护的基石是一个关键的语义和法律区别。

🎧 The financial support provided to DSME and other shipyards, Seoul argued, was not a "subsidy" intended to distort trade.

首尔认为，向大宇造船海洋工程公司和其他造船厂提供的财政支持并非旨在扭曲贸易的“补贴”。

🎧 Rather, it was a necessary and legitimate corporate restructuring—or "normalization"—effort undertaken by the company's creditors.

相反，这是公司债权人采取的必要且合法的企业重组或“正常化”努力。

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🎧 The goal was to prevent a catastrophic bankruptcy that would have sent shockwaves through the entire Korean economy, threatening tens of thousands of jobs and a critical supply chain.

其目的是防止灾难性破产，这种破产会给整个韩国经济带来冲击波，威胁数万个工作岗位和关键供应链。

🎧 This framing was designed to shift the debate away from trade distortion and towards the sovereign right of a nation to manage its own economic crises.

这一框架旨在将辩论从贸易扭曲转向一个国家管理自身经济危机的主权权利。

🎧 In making this argument, South Korea was not treading on new ground.

在提出这一论点时，韩国并非开辟新天地。

 00:21:51

▶ It had a powerful precedent in its back pocket from a previous battle.

它从之前的斗争中获得了强有力的先例。

▶ In the early 2000s, the European Union had brought a very similar case to the WTO, alleging that the Korean government's support for restructuring its shipyards in the wake of the 1997 Asian Financial Crisis constituted illegal subsidies.

在2000年代初，欧盟曾向WTO提起一个非常类似的案件，指控韩国政府在1997年亚洲金融危机后对其造船厂的重组支持构成非法补贴。

▶ That earlier dispute, which concluded with a final panel report in 2005, ended in a major victory for Seoul.

这场早期的争端以2005年的最终专家组报告结束，首尔取得了重大胜利。

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▶ The WTO panel largely accepted Korea's arguments, finding that the EU had failed to prove that the restructuring measures were WTO-inconsistent subsidies.

WTO专家组基本接受了韩国的论点，认为欧盟未能证明重组措施是违反WTO规则的补贴。

▶ This ruling was a landmark victory for Korea.

这一裁决是韩国的里程碑式胜利。

▶ It validated its approach to corporate restructuring and gave its legal team immense confidence that its defense against Japan, which was based on the same fundamental principles, was legally sound and defensible.

它验证了其企业重组的方法，并使其法律团队对基于相同基本原则的针对日本的辩护在法律上是合理和可辩护的充满信心。

 00:22:46

▶ The most sophisticated and critical element of Korea's defense was the argument that the KDB and other state-linked banks were not acting as arms of the "government" providing a handout.

韩国辩护中最复杂和关键的部分是，韩国产业银行和其他国有银行并非作为提供援助的“政府”部门行事。

⏮ Instead, they were acting as rational commercial actors making difficult but sensible business decisions.

相反，他们是作为理性的商业行为者，做出艰难但明智的商业决策。

⏮ This argument directly attacks the definition of a "benefit" as required under the SCM Agreement.

这一论点直接攻击了《补贴与反补贴措施协定》所要求的“利益”定义。

🎵 00:23:12

⏮ A subsidy only exists if a "benefit is thereby conferred."

只有“因此授予利益”时才存在补贴。

⏮ Korea argued that no such benefit was conferred because the actions of the KDB were consistent with what a private market actor would have done in the same circumstances.

韩国辩称，没有授予此类利益，因为韩国产业银行的行为与私人市场行为者在相同情况下会采取的行动一致。

⏮ The logic proceeds as follows: The KDB was already DSME's largest creditor, with billions of dollars of exposure.

逻辑如下：韩国产业银行已经是大宇造船海洋工程公司的最大债权人，面临数十亿美元的敞口。

🎵 00:23:34

⏮ If DSME were to enter bankruptcy and be liquidated, the KDB would have lost its entire investment.

如果大宇造船海洋工程公司破产并被清算，韩国产业银行将损失全部投资。

⏮ Therefore, providing additional financing and restructuring the existing debt—through complex financial instruments like debt-for-equity swaps and bond rollovers—was the most commercially rational strategy.

因此，通过债转股和债券展期等复杂金融工具提供额外融资并重组现有债务是最具商业合理性的策略。

🎧 It was an attempt to salvage their massive initial investment and give the company a chance to recover, with the ultimate goal of eventually being repaid.

这是试图挽救其巨额初始投资，并给公司一个复苏的机会，最终目标是最终获得偿还。

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🎧 This defense masterfully weaponized the complexity of modern finance.

这一辩护巧妙地利用了现代金融的复杂性。

🎧 It transformed the dispute from a simple question of "did the government give money?" to a much more nuanced and difficult question: "Were the terms of that financial support something a private commercial bank might have offered in a similar high-risk workout situation?"

它将争端从“政府是否给了钱？”这一简单问题转变为更加微妙和困难的问题：“这些财政支持的条款是否是私营商业银行在类似高风险重组情况下可能提供的？”

🎧 By framing the bailouts in the sophisticated language of creditor-led normalization, Korea blurred the line between a sovereign government action and a private financial workout.

通过以债权人主导的正常化的复杂语言来描述救助，韩国模糊了主权政府行动与私人财务重组之间的界限。

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🎧 This created an incredibly high evidentiary bar for Japan, forcing the WTO panel of trade law experts to become arbiters of complex financial risk assessment.

这为日本设置了极高的证据门槛，迫使WTO专家组的贸易法专家成为复杂金融风险评估的仲裁者。

🎧 It forced them to answer a difficult hypothetical, creating the "reasonable doubt" needed to fend off Japan's claims.

这迫使他们回答一个困难的假设性问题，制造出抵御日本主张所需的“合理怀疑”。

🎧 It was a brilliant strategy of using legal and financial complexity as a shield.

这是一种利用法律和金融复杂性作为盾牌的绝妙策略。

 00:25:02

▶ The legal battle waged in the halls of the WTO did not produce the clear, decisive victory that Japan had hoped for.

在WTO大厅进行的法律战并未产生日本所希望的明确、决定性的胜利。

▶ The panel reports in these cases are extraordinarily complex, but the overarching outcome is one of ambiguity.

这些案件的专家组报告异常复杂，但总体结果是模棱两可的。

▶ Japan failed to achieve its primary strategic objective:

日本未能实现其主要战略目标：

▶ a sweeping condemnation of South Korea's entire model of state-led support for its shipbuilding industry.

即对韩国整个政府主导的造船业支持模式的全面谴责。

 00:25:27

▶ The core reason for this outcome lies in the immense legal difficulty of meeting the burden of proof, particularly for a de facto export subsidy claim.

这一结果的核心原因在于满足举证责任的巨大法律难度，尤其是对于事实上的出口补贴主张。

▶ As outlined in cases like Canada – Aircraft, a complaining party must establish a tight, demonstrable link between the financial contribution and the anticipation of export earnings.

正如加拿大-飞机案等案例所概述的那样，申诉方必须在财政贡献与出口收益预期之间建立紧密且可证明的联系。

▶ This requires more than just showing that a bailed-out company is an exporter;

这需要的不仅仅是证明受援公司是出口商；

 00:25:52

▶ it requires evidence that the subsidy was conditional on exporting.

还需要证明补贴是以出口为条件的。

🎧 Proving this kind of implicit conditionality in a complex corporate restructuring involving dozens of financial instruments and years of transactions is a Herculean legal task.

在涉及数十种金融工具和多年交易的复杂企业重组中证明这种隐含条件性是一项艰巨的法律任务。

🎧 While Japan may have succeeded on some narrower, procedural points, the WTO panels have historically been reluctant to second-guess the complex economic and financial judgments made by a sovereign government in the midst of a potential economic crisis.

尽管日本可能在一些较狭隘的程序性问题上取得了成功，但世贸组织专家组历来不愿事后质疑主权政府在潜在经济危机期间做出的复杂经济和金融判断。

 00:26:23

🎧 The Korean defense, which framed the bailouts as a rational commercial decision by creditors to save their investment, proved difficult to definitively disprove.

韩国将救助描述为债权人为挽救投资而做出的合理商业决定，这一辩护被证明难以明确反驳。

🎧 The result was not a clear vindication of either side, but a legal stalemate that allowed the underlying conflict to fester.

结果并非任何一方的明确胜利，而是导致潜在冲突恶化的法律僵局。

🎧 The inconclusive nature of the dispute has been profoundly compounded by a much larger, systemic crisis within the WTO itself.

这场争端未决的性质因世贸组织内部更大规模的系统性危机而严重加剧。

 00:26:49

🎧 Since late 2019, the WTO's Appellate Body—effectively its supreme court and the final arbiter of trade disputes—has been non-functional.

自2019年底以来，世贸组织上诉机构——实际上是其最高法院和贸易争端的最终仲裁者——一直处于瘫痪状态。

🎧 The United States, expressing long-standing dissatisfaction with what it views as judicial overreach by the body, has systematically blocked the appointment of new members, leaving

the seven-member court without the minimum number of adjudicators required to hear cases.

美国长期不满其认为该机构的司法越权行为，系统性阻挠新成员的任命，导致七人法庭无法达到审理案件所需的最低法官人数。

▶ This institutional paralysis has created a situation where any country that loses a case at the initial panel stage can simply appeal the report "into the void".

这种制度性瘫痪造成了一种局面：任何在专家组初审阶段败诉的国家都可以将报告“上诉至虚空”。

bilibili 00:27:27

▶ Because there is no functioning Appellate Body to hear the appeal, the case enters a state of permanent legal limbo.

由于没有运作中的上诉机构审理上诉，案件将陷入永久的法律悬置状态。

▶ The panel report can never be formally adopted by the WTO's Dispute Settlement Body, and it therefore never becomes legally binding.

专家组报告永远无法被世贸组织争端解决机构正式通过，因此也永远不会具有法律约束力。

▶ The Japan-Korea shipbuilding dispute is a direct victim of this collapse.

日韩造船争端是这一崩溃的直接受害者。

bilibili 00:27:46

▶ The complaints were filed in 2018 and 2020, meaning their entire legal lifecycle has taken place during this period of systemic breakdown.

申诉分别于2018年和2020年提出，这意味着它们的整个法律生命周期都发生在这场系统性崩溃期间。

▶ Regardless of what the panel decides, a final, binding resolution is currently impossible.

无论专家组如何裁决，目前都不可能达成具有约束力的最终解决方案。

▶ This reality transforms the dispute from a legal process with a clear endpoint into a true war of attrition, fought in a courthouse with no final judge.

这一现实将争端从有明确终点的法律程序转变为在没有最终法官的法庭上进行的消耗战。

 00:28:11

🎮 The case is trapped, not necessarily by its own legal merits, but by the larger geopolitical forces that have fractured the multilateral trading system it was designed to uphold.

案件陷入困境，未必是因为其自身的法律依据，而是因为更大的地缘政治力量破坏了其本应维护的多边贸易体系。

